

plaintiff's *possessory interest* in a specific, identifiable sum”; “the simple failure to pay money owed does not constitute conversion.” (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 284 [133 Cal. Rptr. 3d 774].) Were it otherwise, the tort of conversion would swallow the significant category of contract claims that are based on the failure to satisfy “‘mere contractual right[s] of payment.’” (*Sanowicz v. Bacal* (2015) 234 Cal.App.4th 1027, 1041 [184 Cal. Rptr. 3d 517] (*Sanowicz*); see *Imperial Valley L. Co. v. Globe G. & M. Co.* (1921) 187 Cal. 352, 353–354 [202 P. 129].) Contractual provisions may, of course, determine whether the plaintiff has a possessory right to certain funds in the defendant's hands. (See, e.g., *Fischer v. Machado* (1996) 50 Cal.App.4th 1069, 1072–1074 [58 Cal. Rptr. 2d 213] (*Fischer*) [agency agreement established principal sellers' legal entitlement to converted commissions].) But to put the matter simply, a “plaintiff has no claim for conversion merely because the defendant has a bank account and owes the plaintiff money.” (3 Dobbs et al., *Law of Torts* (2d ed. 2011) § 711, p. 807.)

Voris v. Lampert (2019) 7 Cal. 5th 1141, 1150-1152.

The evidence presented by Plaintiff is a simple failure to pay money owed and does not constitute a cause of action for conversion. Plaintiff has not met its burden as to the Sixth Cause of Action.

Summary adjudication is **GRANTED** in favor of Plaintiff as to the First and Third Causes of Action. Summary adjudication is **DENIED** as to the Fourth and Sixth Causes of Action. The Sabet Defendants are not parties to the Second Cause of Action. Plaintiff did not seek summary adjudication as to the Fifth Cause of action, which names the Sabet Defendants.

While Plaintiff seeks a judgment that includes principal, interest, attorney fees and costs, a judgment will not issue because the Fourth, Fifth and Sixth Causes of Action remain against the Sabet Defendants. Additionally, the Court notes that under Costs and Expenses on page six in the Business Loan Agreement, Defendants are to pay “all reasonable out-of-pocket expenses incurred by the Lender” for enforcement of the agreement. However, Plaintiff has not filed a noticed motion for attorney fees and has not provided any evidence of attorney fees incurred other than a total dollar amount. A Motion for Attorney Fees will be needed in order for the Court to determine the reasonableness of any attorney fee request. A Memorandum of Costs has not been filed.

Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare an Order consistent with the Court’s Ruling. The matter will be on calendar on **Monday, July 27, 2026 at 9:00 a.m. in Department 63** for status of the case. Prior to the next review hearing, the Court expects that Plaintiff will have made a decision if it wishes to move forward on the Fourth, Fifth, and Sixth Causes of Action against the Sabet Defendants.

IN RE: VAZQUEZ

CASE NUMBER: 26CV-0210173

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Brenda Vazquez Valvaneda seeks to change her name to Brenda Vazquez. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

9:00 a.m. – Review Hearings

ANDRADE, ET AL. VS. WELLER

CASE NUMBER: 25CV-0207894

This matter is on calendar for review regarding status of default judgment. Since the last hearing on May 11, 2026, Plaintiffs have dismissed the quiet title and declaratory relief actions as well as the Doe Defendants.